

		Plaintiff's counsel's declaration demonstrates that process cannot be served with reasonable diligence upon the Defendant's designated agent, who cannot be found. Nor can service be reasonably effectuated by any other allowable means. The motion is granted.
7	24-01382178 <i>Kim vs. Kkanbu Restaurant, Inc.</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Form Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Production 5) Motion to Deem Facts Admitted Defendant and Cross-complainant Ai Ran Yang's motions to compel responses to (1) Form Interrogatories – General, Set One, (2) Form Interrogatories – Employment, Set One, (3) Special Interrogatories, Set One, (4) Request for Production, Set One, and (5) deem the truth of any matters in Request for Admissions, Set One, admitted and for sanctions against Cross-defendant Hyun Mi Ki are DENIED as MOOT. On 11/14/25, Defendant and Cross-complainant Ai Ran Yang filed the instant discovery motions regarding discovery propounded on Cross-defendant Hyun Mi Kim. On 8/25/25, however, Defendants and Cross-complainants Kkanbu Restaurant, Inc. and Ai Ran Yang filed a request for entry of default against Cross-defendant Hyun Mi Kim on the cross-complaint filed 4/23/25. (ROA 41.) Default was entered on 8/25/25. “The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.” (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385 [citations omitted].) “A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action” (Id. at p. 385-386 [citation omitted].) As default has been entered against Cross-defendant Kim on the Cross-complaint, Cross-defendant Kim is “out of court” and Defendant and Cross-complainant Yang's discovery motions are therefore moot.
8	25-01472504 <i>Maleki vs. Schumacher & Maleki, LLC</i>	Order to Show Cause re: Preliminary Injunction Plaintiff Majed Maleki's Motion for Preliminary Injunction is DENIED. Defendant's objections to evidence (ROAs 139 and 140) are overruled. Plaintiff seeks an injunction prohibiting and limiting Defendant Jenna Schumacher's involvement in the parties' joint interior design business, Defendant Schumacher & Maleki, LLC (“the LLC”) including destroying assets, soliciting clients from the LLC, and generally

	prohibiting Schumacher from engaging in competing interior design work. (Notice, p. 2.) Legal Standard: Code of Civil Procedure section 526(a) provides in part, “(a) An injunction may be granted in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.” Although an OSC re: Preliminary Injunction directs the responding party to show cause why the preliminary injunction should not issue, the burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (O’Connell v. Superior Court (2006) 141 Cal. App. 4th 1452, 1481.) In deciding whether to issue a preliminary injunction, the court must consider two interrelated factors: (1) the likelihood that the moving party will prevail on the merits, and (2) whether the harm the moving party will likely suffer if the motion is denied outweighs the harm the opposing party is likely to suffer if the motion is granted. (Ketchens v. Reiner (1987) 194 Cal.App.3d 470, 474.) “These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’ [Citation.]” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183.) Defendant’s Pending Motions and Discovery: Defendant contends the Court should not rule on the present motion until it first rules on (1) her motion to dismiss based on lack of jurisdiction/failure to join the LLC as an indispensable party, and (2) her
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motion to disqualify Plaintiff's counsel from simultaneously representing Plaintiff and the LLC.

She also contends the Court has not yet ruled on her discovery motion related to the issues raised in this motion, because on 4/16/26 the Court ordered the parties to engage in additional attempts to meet and confer with a continued hearing date of 7/23/26.

Defendant fails to cite legal authority prohibiting the Court from addressing the present motion before her motions to dismiss, disqualify, or compel discovery. Defendant has not filed a separate application for relief in scheduling the motions. Therefore, the Court will consider the merits of the present motion at this time.

Likelihood of Prevailing:

Plaintiff alleges claims for (1) dissolution of LLC and (2) preliminary injunctive relief. Initially, preliminary injunction is an interim remedy, not an independent cause of action so the Court will evaluate Plaintiff's likelihood of prevailing on the first claim for dissolution only.

Plaintiff contends Defendant has begun operating an interior design business (Jenna Schumacher Interior Design, Inc.) which competes with the parties' existing LLC. Plaintiff contends Defendant has been diverting customers and assets from the LLC to her own business in violation of Defendant's fiduciary duties to the LLC.

Plaintiff submits his own declaration stating (1) he and Defendant are 50% members of the LLC, (2) Defendant stated she was leaving the LLC on 11/1/23, (3) Defendant formed her own business on 1/9/24, (4) the parties discussed buyout options but were unable to reach agreement on a consensual dissolution, (5) Defendant resigned as manager on 8/28/24, (6) Defendant began excluding Plaintiff from communications with the LLC's clients regarding ongoing projects, (7) Schumacher's refusal to participate in the LLC has made it impractical to operate the LLC.

Plaintiff's counsel declares that in November 2024, Defendant sent a holiday card announcing her competing business to the LLC's clients. (Levanthal Decl., ¶ 7.) However, Plaintiff's counsel does not state whether Defendant has actually taken any clients from the LLC. Plaintiff generally asserts that the existence of a separate business per se establishes that Defendant is "competing" with the LLC.

Defendant contends Plaintiff has failed to submit evidence that she is actually competing with the LLC, and that California law favors allowing free competition by a former employee. She submits a declaration stating that the custom residential design services provided to each client are unique. However, Defendant does not directly address Plaintiff's contention that

		Defendant would be violating her fiduciary duties as a member of the LLC if she diverted business or assets from the LLC. Notably, Defendant's opposition does not argue that the LLC should not be dissolved or that it is unlikely Plaintiff will prevail on his claim for dissolution. Plaintiff has submitted sufficient evidence to demonstrate it is likely he will prevail on his request to dissolve the LLC based on the undisputed evidence that the parties are no longer willing or able to cooperate in operating the LLC. In fact, both parties apparently want to dissolve the LLC but cannot agree on terms of dissolution. Balance of Harms: Plaintiff seeks a broad injunction which not only precludes Defendant from soliciting the LLC's clients but generally prohibits Defendant from "engaging in or soliciting interior design services" at all. Plaintiff contends Defendant's operation of an independent interior design business violates her fiduciary duties to the LLC because the two businesses are competing for a limited number of clients in the region. However, Plaintiff has not submitted substantial evidence that Defendant's interior design business has actually appropriated the LLC's assets or taken any specific client(s). Plaintiff's declaration extensively describes the parties' negotiations to dissolve the LLC, but includes minimal information about Defendant's separate business and its effect on the LLC. At most, Plaintiff has established Defendant sent a holiday card announcing her new business to the LLC's clients. Therefore, Plaintiff has not demonstrated that Plaintiff individually (or the LLC, although the LLC is not a party to this motion) will suffer substantial harm if the motion is denied. On the other hand, broadly prohibiting Defendant from operating her independent business would result in substantial harm by preventing her from pursuing her career and earning a living now that her involvement in the LLC is diminished. Therefore, Plaintiff has not shown that issuance of a preliminary injunction is necessary at this time.
9	23-01360897 <i>Marin-Gonzalez vs. Escalante Morroquin</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Peter E. Garrell to withdraw as attorney of record for Defendant Kimberly Escalante Morroquin is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.